

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cliii.]
Provisional Order Confirmation (Morecambe and
Heysham) Act, 1930.



CHAPTER cliii.

An Act to confirm a Provisional Order of the Minister of Health relating to Morecambe and Heysham. A.D. 1930.
—
[1st August 1930.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Morecambe and Heysham) Act 1930. Short title.

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Heysham) Act, 1930.*

A.D. 1930.

SCHEDULE.

BOROUGH OF MORECAMBE AND HEYSHAM.

Morecambe and Heysham Order. *Provisional Order amending the Morecambe Corporation Act 1924.*

WHEREAS the borough of Morecambe and Heysham is an urban district of which the mayor aldermen and burgesses acting by the council are the local authority for the purposes of the Public Health Act 1875 and the provisions of the Morecambe Corporation Act 1924 are in force in the borough;

And whereas by section 160 of the local Act of 1924 the Corporation are authorised to provide on or near the seashore places for riddling and washing mussels and section 139 confers a power of borrowing money for the purposes of that Act;

And whereas the Morecambe and Heysham Corporation have applied to the Minister of Health for the issue of a provisional order to amend the local Act in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title
and com-
mencement.

1. This order may be cited as the Morecambe and Heysham Order 1930 and shall come into operation on the date of the Act of Parliament confirming it.

Inter-
pretation.

2. In this order unless the context otherwise requires—

“the Borough” means the borough of Morecambe and Heysham;

“the Corporation” means the mayor aldermen and burgesses of the Borough acting by the council;

“the local Act” means the Morecambe Corporation Act 1924.

Amendment
of section 160
of local Act.

3. Section 160 of the local Act shall be amended by the addition at the end thereof of the following paragraph :—

“The Corporation may contribute towards the cost of the provision and maintenance within the Borough of tanks or other works for cleansing or sterilising mussels.”

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4. Subject to the consent of the Minister of Health the Corporation— A.D. 1930.

(a) may by agreement purchase or take on lease and hold any land or interest in land; or

(b) may appropriate any land which at any time may be vested in them;

for the purpose of assisting in the provision within the Borough of tanks or other works for cleansing or sterilising mussels.

Morecambe
and
Heysham
Order.

Acquisition
and appro-
priation of
land.

5. Any contribution to capital purposes made by the Corporation under this order and the cost of the purchase by the Corporation of land for the purpose of assisting in the provision of tanks or other works within the Borough for cleansing or sterilising mussels shall be purposes of the local Act for which the Corporation with the consent of the Minister of Health may borrow money under paragraph (a) of subsection (2) of section 139 of the local Act. Borrowing power.

6. All expenses incurred by the Corporation in the exercise of the powers conferred upon them by this order (except such expenses as are payable out of borrowed money) shall be paid out of the general rate fund and general rate of the Borough and any moneys received by the Corporation under this order shall be carried to and form part of that fund and rate. Expenses.

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